BANK OF AMERICA, N.A. v GARCIA

19CF12836

DEFENDANT'S CLAIM OF EXEMPTION

On June 15, 2019 judgment creditor Bank of America ("BOA") obtained a judgment against Defendant Lucy D. Garcia ("Garcia") in the amount of $20,525.79. After Los Angeles County withheld funds, Garcia filed a claim of exemption. BOA has filed an opposition.

Code of Civil Procedure section 706.050(a) states:

> Except as otherwise provided in this chapter, the maximum amount of disposable earnings of an individual judgment debtor for any workweek that is subject to levy under an earnings withholding order shall not exceed the lesser of the following: (1) Twenty-five percent of the individual's disposable earnings for that week. (2) Fifty percent of the amount by which the individual's disposable earnings for that week exceed 40 times the state minimum hourly wage in effect at the time the earnings are payable.

As BOA points out in their opposition, Garcia has not provided any information about her income or expenses, nor has she traced any of her earnings to exempt sources. Garcia asserts that funds are exempt pursuant to Code Civil Procedure sections 704.070 (wages) and 704.110 (death benefits). However, it is impossible for the Court to determine the appropriate amount for withholding given the lack of any financial information provided. To the extent, however, any withholding would include social security or public retirement benefits, such earnings are exempt from garnishment.

Garcia's claim for exemption of social security and public benefits or death benefits is **GRANTED** in principle. However, Garcia is ordered to file and serve a financial statement by 3:00 p.m. on November 8, 2024, setting forth the source of her monthly income and whether she is paid monthly, bi-weekly, or weekly so the Court may determine the amount of withholding to be ordered. Any response by plaintiff must be served and filed by 3:00 p.m. on November 15, 2024. The hearing on this matter is continued to November 22, 2024, at 9:00 a.m. in Department 2.

The Clerk shall provide notice of the Ruling forthwith.

ONEMAIN FINANCIAL GROUP, LLC v NASTASIA

20CF13146

PLAINTIFF'S MOTION TO VACATE PRIOR ORDER OF DISMISSAL AND FOR ENTRY OF JUDGMENT PURSUANT TO STIPULATION OF THE PARIES

On or about March 30, 2021, Plaintiff Onemain Financial Group ("Plaintiff") and Defendant Lacey Chauntae Natasia ("Defendant") entered into a verbal agreement for a "Stipulation for Entry of Judgment" to settle this case. (Declaration of Fanny Wan ("Wan Decl.") ¶ 3.) The agreement was reduced to writing and signed by the parties. (*Ibid*; Ex. 1.)

According to the settlement agreement, Defendant owed Plaintiff $5,243.19, but Plaintiff would accept $4,938.05 so long as Defendant paid $100 monthly starting on April 20, 2021 until the debt was paid in full. (Wan Decl. ¶ 3.) Additionally, the parties agreed that so long as payments were timely made, no judgment would be entered against Defendant.

Defendant's last payment was October 12, 2021. (Wan Decl. ¶ 6, Ex. 2.) Plaintiff now moves the Court for an Order Setting Aside and Vacating its Prior Order of Dismissal and for Entry of Judgment for the amount prayed for in its complaint, less credit for payments received, plus previous court costs.

The settlement agreement contains the following language:

> Should defendant default in the payment of any monthly installment, Plaintiff will be entitled to proceed with a noticed motion to enter judgment pursuant to this stipulation, to enter judgment in favor of Plaintiff and against Defendant in the full amount of the balance due as described in Paragraph 1 of this stipulation, less payments received plus court costs (including Defendant's first appearance fees and any motion filing fee, if applicable) incurred in obtaining the judgment, without further notice to Defendant being required.

The agreement further provides:

> This is a judicially supervised settlement as described in and in accordance with the provisions of the California Code of Procedure §664.6. The parties expressly agree that the court shall retain jurisdiction over the parties to enforce the settlement performance in full of the terms hereof.